

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
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U.S. DISTRICT COURT E.D.N.Y.
★ MAY 27 2010 ★

BROOKLYN OFFICE

3425

COMPLAINT

~~Jury Trial Demanded~~
ROSS, J.

BLOOM, M.J.

CHRIS HAGLEY, OSTER HAGLEY

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JAMES RIVERA
(SHIELD NO. 5027), JOHN DOE 1-4

Defendants.

PRELIMINARY STATEMENT

1. This is an action for money damages brought pursuant to the Civil Rights Act of 1871, 42 U.S.C. §1983 for the Defendants' commissions of acts under color of law in violation of the Plaintiff's rights under Fourth, Sixth, and Fourteenth Amendment to the United States Constitution and Article I, Section 12 of the New York State Constitution and of common law of the State of New York. The case arises from an January 27, 2010 incident in which members of the New York City Police Department ("NYPD") subjected plaintiffs to false arrest, excessive force, assault and battery, and fabricated evidence.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983, and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper pursuant to 28 U.S.C. § 1391(b) and (c) because defendant City of New York is subject to personal jurisdiction in the Eastern District and the events in question occurred in the Eastern District.

PARTIES

4. Plaintiffs are residents of the State of New York, County of New York.

5. The City of New York is a municipal corporation organized under the laws of the State of New York.

6. The New York City Police department (the "NYPD") is the department of the City responsible for, among other functions, arresting persons for offenses and maintaining custody over such persons prior to their initial appearance in court. At all times relevant hereto, the NYPD, together with the City, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, and conduct of all NYPD personnel. In addition, at all relevant times, defendant NYPD, together with the City, was responsible for enforcing the rules of the NYPD, and for ensuring that NYPD personnel obeyed the Constitutions and laws of the United States and of the State of New York.

7. James Rivera is a member of the NYPD who violated plaintiff's rights as described herein. Rivera is sued in his individual and official capacity.

8. John Does are members of the NYPD who violated plaintiff's rights as described herein. Does are sued in their individual and official capacity.

STATEMENT OF FACTS

9. On January 27, 2010, at approximately 7:05 a.m., at 1455 St. Johns Place in Brooklyn, New York, Police Officer Rivera and John Does arrested plaintiff Chris Hagley without cause and falsely charged him with Obstructing Governmental Administration.

10. At all relevant times, plaintiff was not involved in criminal activity. Plaintiff had merely exited his apartment door and was moving toward the front entrance of his building when the Police Officers seized him. Chris Hagley verbally objected to this unwarranted seizure. After a minute or so, the officers realized that Chris Hagley was not the individual they sought. Nevertheless, The Officers still refused to release Chris and placed him in painfully tight handcuffs.

11. At this point, Oster Hagley, Chris's brother, was returning home. Earlier he had been questioned by these same officers regarding their search for Enoch Hagley, his other brother. Upon seeing Chris in handcuffs, he told the officers they had the wrong guy, that Chris was not Enoch.

12. The officers objected to Oster's words by roughly slamming him up against a metal gate. Oster was then placed in painfully tight handcuffs. Both brothers were then transported to the 77th Precinct.

13. At approximately 11:00 a.m., plaintiffs were taken to Brooklyn Central Booking. While plaintiffs were in Central Booking, awaiting arraignment, one or more of the arresting officers met with a prosecutor employed by the Kings County District Attorney's Office.

14. The officer(s) misrepresented to the prosecutor that plaintiffs had committed Obstructing Governmental Administration in the Second Degree.

15. As a result of the aforesaid misrepresentation, charges were filed against plaintiffs.

16. On January 28, 2010, at approximately 1:00 a.m. plaintiffs received ACDs.

17. As a result of defendants' actions, plaintiff experienced physical injuries, emotional distress, fear, embarrassment, humiliation, discomfort, pain and suffering, loss of liberty, and damage to reputation.

**FEDERAL AND STATE LAW CLAIMS
AGAINST RIVERA AND JOHN DOES**

18. Plaintiffs repeat and reallege the allegations contained in ¶¶ 1-17 as if fully set forth herein.

19. The conduct of Police Officer Rivera and John Does, as described herein, amounted to false arrest, excessive force, assault and battery, and fabricated evidence. This conduct violated plaintiffs' rights under 42 U.S.C. § 1983, the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

**FEDERAL LAW CLAIMS AGAINST THE
CITY OF NEW YORK**

20. Plaintiffs repeat and reallege the allegations contained in ¶¶ 1-19 as if fully set forth herein. The City of New York directly caused the constitutional violations suffered by plaintiff.

21. Upon information and belief, the City of New York, at all relevant times herein, was aware from notices of claim, lawsuits, complaints filed with the NYPD and the Civilian Complaint Review Board, and from the NYPD's own observations, that the individual defendants are unfit, ill-tempered police officers who have the propensity to commit the acts alleged herein.

22. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them. Moreover, the City of New York failed to adequately investigate prior complaints against the officers.

23. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

WHEREFORE, plaintiffs demand a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: May 20, 2010
New York, New York

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ROBERT MARINELLI (RM-4242)